

25VECV00435 25VECV00435

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 25VECV00435 Hearing Date: September 15, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Karla Tostado, et

al.,

Plaintiff.

v.

FCA US,

LLC, et al.

Defendants.

Case Number Department

25VECV00435 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Compel
Initial Disclosures pursuant to

Code of Civil
Procedure §871.26 and Request for

Monetary Sanctions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Granted in part and Denied in part

I.

BACKGROUND

Action

for violations of Song Beverly Warranty Act.

Plaintiffs filed a complaint on January 24, 2025 against FCA US, LLC and
Rydel Chrysler Dodge Jeep Ram. The

operative complaint is the First Amended Complaint filed on January 27, 2026
alleging (1) violation of Civil Code section 1793.2(d); (2) violation of Civil
Code section 1793.2(b); (3) violation of Civil Code section 1793.2(a)(3); (4)
breach of the implied warranty of merchantability; and (5) fraudulent
inducement.

On

June 15, 2026, Plaintiffs filed the instant Motion to Compel Initial
Disclosures pursuant to Code of Civil Procedure section 871.26 and Request for
Monetary Sanctions. On September 8,
2026, Plaintiffs filed a Notice of Non-Opposition.

II.

LEGAL

STANDARD

“Within 60 days after the filing of
the answer or other responsive pleading, all parties shall, without awaiting a
discovery request, provide to all other parties an initial disclosure and
documents pursuant to subdivisions (f), (g), and (h).” (CCP §871.26(b).)

“The defendant or manufacturer

shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): (1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year. (2) Any warranties issued in conjunction with the sale of the motor vehicle. (3) Sample brochures published for the motor vehicle. (4) The motor vehicle's original invoice, if any, to the selling dealer. (5) Sales or lease agreement, if the manufacturer is in possession. (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins (“TSBs”)¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle. (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle. (14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint. (15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to “Lemon Law” claims. (16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation. (17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle.” (CCP §871.26(h).)

“Unless

the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).” (CCP §871.26(j).)

III.

DISCUSSION

Plaintiffs

ask that the Court order Defendant FCA US LLC to comply with its mandatory initial disclosure obligations under CCP §871.26. Plaintiffs ask that Defendant produce all documents required under CCP §871.26(h)(6)-(10), (12) and (13). Plaintiffs also request sanctions in the amount of \$2,500 against Defendant FCA US LLC and its counsel.

Defendant

filed a demurrer to the original complaint on April 14, 2025, a demurrer to the FAC on February 26, 2026 and an answer on April 22, 2026. Although Defendant has produced some documents, Defendant has not yet served initial disclosures with verifications required by section 871.26(h)(6)-(10), (12) and (13). (Rucker Dec., ¶14.)

Plaintiff

fails to cite any authority authorizing the Court to compel initial disclosures under section 871.26. Section 871.26 requires imposition of mandatory sanctions but there is no language authorizing the Court to compel initial disclosures. Plaintiff's motion to compel initial disclosures is therefore denied.

However,

Plaintiff also requests sanctions in the amount of \$2,500. Section 871.26 subdivision (j) specifically authorizes mandatory sanctions for failure to provide the required disclosures, unless the non-complying party shows good cause. Defendant did not oppose or respond. Pursuant to subdivision (j)(1), a defense attorney who fails to comply with section 871.26 must be sanctioned in the amount of \$2,500. Plaintiff establishes non-compliance and is entitled to an order imposing sanctions against defense counsel.

Plaintiff's

Motion to Compel Initial Disclosures pursuant to Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is granted as to the request for sanctions and denied as to all other requested orders, including an order compelling initial disclosure.

IV.

CONCLUSION

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Plaintiff's

Motion to Compel Initial Disclosures pursuant to Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is granted as to the request for sanctions and denied as to all other requested orders, including an order compelling initial disclosure.

Dated: September 15, 2026 _____ Hon. Eric
Harmon

Judge
of the Superior Court